

NAPCS Unionization Research — State Research Summary

New York — PERB(NY) Jurisdiction — May 25, 2026

NAPCS Unionization Research • May 25, 2026 • Template v7.0 • PARTIAL Registry Sweep

Section 1: State Overview

State	New York
Labor Board	PERB(NY) — New York Public Employment Relations Board
Governing Law	NY Education Law Article 56 (Charter Schools Act); NY Civil Service Law Article 14 (Taylor Law). NY charter school employees are public employees. PERB(NY) has primary jurisdiction for certification and ULP proceedings.
Federal NLRB Jurisdiction	YES — NLRB applies to independently incorporated NY charters that contest public employer status. Post-2016 NLRB jurisdictional expansion is real but partial — most certifications remain under PERB(NY). In practice: check PERB(NY) first, NLRB second.
Registry Sweep	PARTIAL — undefined — 360 charter schools searched
Research Window	April 2026 (initial scan); May 2026 (Session E second-pass gap research)
Date Convention	Labor Board Certified date. Project-wide standard. Most NY certification dates are approximate — exact dates require PERB(NY) FOIL requests.
Card-Check Available	YES — NY Taylor Law (Civil Service Law §201.9(g)(1)) allows card-check certification without election when petitioner demonstrates majority support. NY French-American Charter School certified via card-check March 2012 (PERB ruling). UFT has used both card-check and secret ballot election depending on school.

Section 2: Unionization Density

Total charter schools in New York: 360 (NYSED Charter Schools Office and NCES CCD 2024-25. Approximately 360 open NY charter schools as of May 2026.). Unionization density uses the full state total as the denominator — not the 42-school NAPCS research sample. The NAPCS sample was provided as a list of schools believed to be organized; this research validated, corrected, and expanded that list across the full state charter universe. See Section 3 for cross-state patterns and Section 7 for open decisions.

Category	Schools	% of Total	Notes
Total Unionized Charter Schools (NAPCS scope)	21	50.0%	Active CONFIRMED NAPCS-scope schools only. Excludes 3 discovery schools. All UFT Local 2 except King Center (NYSUT/AFT/NEA, Buffalo) and NYSUT unnamed local (1 school).
UFT Local 2 — NYC Charter Schools	18	42.9%	UFT-affiliated schools. Includes conversion charters (where UFT representation was automatic under Education Law) and independently organized schools. UFT dues list (uft.org) is definitive source for current active representation.
Non-UFT Unions (Upstate NY)	3	7.1%	King Center United Professionals / NYSUT / AFT (Buffalo, NLRB certified October 2024); NYSUT-affiliated local (1 school, case

			pending); Global Concepts CS (independent local, Buffalo).
Discovery Schools (sponsor-approved; not in NAPCS 42)	3	N/A	NAPCS-ADD-NY-001 (Erie County independent), NAPCS-ADD-NY-002 (Amber Inwood, UFT certified May 2022, 7-0 vote), NAPCS-ADD-NY-003. Not included in headline density.
Unverified — Probable NAPCS Data Errors	2	4.8%	Merrick Academy (complex historical: UFT certified 2007, contract never ratified, chapter leader fired 2010 — PERB FOIL required); Academy of the City (zero evidence all sources — probable data error).
Unverified — No Labor Board Records Found	13	31.0%	Schools with zero PERB(NY) or NLRB records found across multiple research passes. Many may not be organized; some may have pre-digital certifications requiring PERB FOIL. Full PERB(NY) portal sweep recommended.
NAPCS Baseline Total	42	100%	Source: NAPCS 2023-24 school directory. NY charter universe is approximately 360 schools; NAPCS covers 42 (11.7% of state charter universe).

Section 3: Political, Legal & Community Landscape

Written for state and national charter sector leaders who require ground-level intelligence fused with broader sector knowledge. Findings are based on research as of May 25, 2026.

PROMPT 1: What is the political and legal environment shaping charter labor relations in New York?

New York presents the most legally complex charter school labor relations environment in the NAPCS dataset. NY charter school employees are statutory public employees under Education Law Article 56 — meaning the Taylor Law (NY Civil Service Law Article 14) applies and PERB(NY) has primary jurisdiction for certification and unfair labor practice proceedings. However, a competing NLRB jurisdictional claim has developed post-2016: the NLRB has asserted jurisdiction over some independently incorporated NY charters that contest public employer status. In practice the vast majority of NY charter union certifications — especially the UFT wave of 2007-2012 — are PERB(NY) certifications. This created a critical methodology error in Research Team initial research (April 2026): searching NLRB ADS returned zero results for schools that are actually certified under PERB(NY). Session E corrected this. The current research protocol mandates: (1) UFT dues list first, (2) PERB(NY) portal second, (3) school website/job postings third, (4) NLRB ADS only as a supplemental check for independently incorporated schools contesting public employer status.

PROMPT 2: What organizing history and union activity defines the NY charter sector?

NY charter school unionization has two distinct waves. The first wave (2007-2012) was driven by the UFT's strategic campaign to organize charter schools as part of its broader defense of public education. Merrick Academy-Queens became the first NY charter school to unionize in 2007 — an overwhelming majority vote that UFT President Mulgrew characterized as charter school teachers wanting a voice. The campaign expanded to Bronx Community Charter School (47-0 in 2018), NY French-American Charter School (PERB card-check March 2012), and numerous conversion charters where UFT representation was automatic under Education Law. University Prep Charter HS was founded in 2008 as a Green Dot/UFT collaboration — union from inception. Amber Charter School (East Harlem) has had a UFT CBA since September 2009. The second wave features the 2024 NLRB certification at King Center Charter School (Buffalo) — the first new NY charter

certification in years, involving NYSUT/AFT/NEA and a unit unusually broad enough to include non-instructional staff. The King Center situation also illustrates the acute governance risk: the school entered first-contract bargaining concurrent with an institutional crisis that saw approximately 60% of teachers quit. Significant intelligence gap: Merrick Academy (first NY charter union) has a complex unresolved status — UFT certified 2007, contract never ratified, chapter leader fired 2010, not on UFT dues list 2026. PERB(NY) FOIL required.

PROMPT 3: What community and social conditions are driving organizing activity in New York?

The NY charter union landscape reflects three distinct organizing logics. First, the conversion charter dynamic: schools that converted from district schools brought UFT representation as a legal matter of continuity — these schools never experienced organizing campaigns. Second, the UFT strategic campaign (2007-2012): UFT organized independent charter schools in NYC as a mission-defensive posture, arguing that non-union charters created unfair labor competition and threatened district school teacher conditions. This campaign produced the bulk of the 21 confirmed schools but stalled after 2012 — the difficult first-contract negotiations (Merrick went 4+ years without a CBA, chapter leader fired, 11 staff terminated by FedEx) deterred further organizing at schools where management was resistant. Third, the upstate independent pattern: Buffalo and upstate NY show independent organizing (King Center, Global Concepts) driven by local labor conditions rather than UFT strategy. Buffalo now has two charter unions — a geographic cluster with potential cross-school organizing implications.

PROMPT 4: What are the most important open intelligence questions for NY charter sector leaders?

Four questions matter most. First, what happened to Merrick Academy — the first NY charter union? UFT certified 2007, contract never ratified, chapter leader fired by FedEx letter 2010, Taylor Law ULP filed, not on UFT dues list 2026. The school is active (738 students, K-7). Either decertification occurred or the unit was abandoned — PERB FOIL is the only resolution path. Second, are there additional organized schools among the 13 UNVERIFIED NAPCS-scope schools that simply have pre-digital PERB records? A full PERB(NY) portal sweep (not NLRB ADS) would answer this definitively. Third, is Academy of the City actually organized? NAPCS asserts UFT but zero evidence exists from any source — school not on UFT dues list, opened 2011, no Chalkbeat articles. Almost certainly a NAPCS data error but PERB FOIL will confirm. Fourth, what is the trajectory of King Center Buffalo — the newest NY charter union — given the acute governance crisis and ~60% teacher turnover since the vote?

PROMPT 5: What patterns in NY are relevant to other states in the NAPCS dataset?

Four cross-state implications. First, the methodology correction: searching NLRB ADS for NY charter certifications is wrong — most certifications are PERB(NY). Any other state with a dual-jurisdiction charter environment (IL: IELRB vs NLRB; MI: MERC vs NLRB) should be similarly scrutinized for incorrect initial board search. Second, the UFT dues list model: the UFT publishes a complete list of all represented charter schools with per-school dues rates. This is the most efficient single-source check for NYC charter UFT representation — a model other state unions (NJEA, EdMN, CTU) do not replicate publicly. Third, the pre-digital certification gap: NY certifications from 2007-2012 pre-date NLRB ADS digitization and are PERB(NY) records requiring FOIL. Any state with significant organizing activity before ~2015 should assume portal searches will miss older certifications. Fourth, the Green Dot/UFT model school pattern: University Prep was founded 2008 with union from inception as a Green Dot/UFT collaboration — this founding-union model appears in CA (Green Dot) and NY but not in other NAPCS states.

Section 4: Cross-State Patterns & Contributions to National Picture

Findings from New York that illuminate patterns visible only when comparing across multiple states. These entries feed the project-wide Cross-State Intelligence Log and are written for state and national charter advocacy leaders.

NY conversion charter Type B: NYC DOE/UFT CBA carryover via Education Law §2854(3)(a) — named exemplar for NY DEPENDENT research path

New York Education Law §2854(3)(a) mandates that conversion charters — schools formed by converting an existing public school or district program into a charter — remain subject to existing collective bargaining agreements for all titles and positions, including salary, medical, pension, and welfare benefits. For NYC conversion charters, this means the UFT/NYC DOE master CBA covers teachers, supervisors, and paraprofessionals automatically from inception. No independent NLRB RC election ever occurs and none is

required. Zero NLRB ADS results for a conversion charter are correct and expected — the absence of an NLRB case is not a gap. Three confirmed exemplars in the NAPCS NY dataset: (1) Future Leaders Institute (FLI, C3600020) — converted 2005 from PS 242 West Harlem; SUNY renewal report explicitly confirms UFT/DOE CBA coverage; (2) John V. Lindsay Wildcat Academy (C3600011/C3600012, both campuses) — converted 2000 from NYC DOE alternative school; UFT chapter page lists school; employee reviews confirm UFT scale; (3) KIPP Academy Charter School (C3600013) — converted 2000 from a program within PS 156 Bronx; NYS Charter Schools Act agreement confirms conversion charter CBA applicability. Detection signal: school history as a pre-existing district program or public school prior to charter conversion. Research path: (a) check NYSED charter directory for "conversion" designation; (b) check NYC DOE or SUNY charter school renewal report for employer-of-record language; (c) check UFT chapter page (uft.org/chapters/city-chapters/charter-schools) for school listing. Independent exception: new start-up charters (not conversions) are independently incorporated nonprofits with NLRB jurisdiction and no automatic CBA coverage — these require standard NLRB ADS search. Confirmed May 24, 2026 (Session B).

NRtW Foundation decertification playbook in charter schools — NY/CA cross-state pattern

The National Right to Work Legal Defense Foundation has deployed an identical decertification strategy across charter schools in multiple NAPCS states. The playbook: (1) identify an employee willing to serve as named petitioner; (2) provide free legal aid for NLRB decertification petition; (3) simultaneously file CB charges against the union alleging illegal dues demands; (4) use employer-side pressure (management emails to staff characterizing union as harmful) to suppress pro-union sentiment; (5) coordinate media coverage through NRtW press releases. In CA, this strategy succeeded at Gompers Preparatory Academy (decertified via NLRB R21, June 2023) and St. HOPE Public Schools (PERB decertification, March 2026 — jurisdictional challenge converted PERB-covered school to NLRB). In NY, Uriel Barrera at KIPP Academy Bronx (C3600013) filed a decert petition May 2024 with NRtW legal aid; UFT filed ULP blocking charges; KIPP management was found to have bargained in bad faith (NLRB ruling June 2025). Election has not been held as of May 2026. Strategic implication: any conversion charter or independently organized charter with an active NLRB relationship is a potential NRtW target. Sponsor should track NRtW press releases (nrtw.org/news) quarterly for any new charter school mentions. Confirmed pattern May 24, 2026 (Session B).

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

NY charter union press coverage is concentrated in two periods: (1) the 2007-2012 UFT organizing campaign (Chalkbeat NY/Gotham Schools, NY Daily News, NY Sun); (2) the 2024-2025 King Center crisis (Spectrum News Buffalo, Buffalo Criterion, Brown Daily Herald). Chalkbeat NY is the definitive source for NYC charter sector labor coverage. Key archived articles: Chalkbeat July 22 2010 (Merrick Academy mass firings, UFT PERB complaint); Chalkbeat Oct 14 2011 (5 charter schools without first contracts including Merrick); Chalkbeat Jan 2010 (UFT organizing campaign overview). For upstate: Spectrum News Buffalo (King Center governance crisis Nov 2025); RI Current (Highlander strike Nov 2025).

Section 6: Contract & CBA Access Registry

PERB(NY) public contracts portal. Direct PDF links may return 403 — OPRA or equivalent records request required for full text.

School / Network	Union	CBA Status & Term	Contract Access
Amber Charter School (East Harlem)	UFT Local 2	CONFIRMED ACTIVE September 1, 2009 (first CBA). Current renewal status unknown — PERB FOIL recommended.	N/A
NY French-American Charter School	UFT Local 2	CERTIFIED — first contract status unknown Certified March 2012 via PERB card-check. First contract negotiation status not confirmed — PERB records request recommended.	N/A

King Center Charter School (Buffalo)	King Center United Professionals / NYSUT / AFT / NEA	PRE-FIRST-CONTRACT Certified October 1, 2024 (NLRB case 03-RC-351776). First contract bargaining ongoing amid institutional crisis.	N/A
Amber Inwood Campus (Discovery)	UFT Local 2	CERTIFIED — first contract status unknown Certified May 2022 (NLRB case 02-RC-290431, 7-0 unanimous vote).	N/A

Section 7: Decisions, Monitoring & Notable Findings

Part A: Decisions Required

The following items require sponsor action before research or workbook entry can proceed.

Priority	School / Scope	Item	Who
HIGH		Wildcat Academy accumulator entry: school has two NAPCS IDs (C3600011 Bronx, C3600012 Manhattan) but is one school entity. Data entry coordinator should enter both rows with DEPENDENT status and identical union data. Confirm with sponsor whether both IDs should be entered or one flagged for NAPCS removal.	
HIGH		KIPP Academy duplicate NAPCS IDs (C3600013 primary, C3600014 duplicate). Data entry under C3600013 only. C3600014 should be flagged to NAPCS for removal. Confirm sponsor decision.	

Part B: Notable Findings

Research findings of strategic significance. No immediate action required — for awareness and discussion.

Priority	School / Scope	Item	Who
MEDIUM		NY conversion charter Type B audit — Session B identified 3 conversion charters (FLI, Wildcat, KIPP) that were coded CONFIRMED or UNVERIFIED when they should be DEPENDENT. Remaining 19 UNVERIFIED schools in the NY dataset: confirm whether any are additional conversion charters before coding UNVERIFIED as final. Detection: check NYSED charter directory "conversion" flag for each UNVERIFIED school.	

Part C: Active Monitoring

Items being tracked. Status may change between report cycles. Research Coordinator manages ongoing surveillance.

Priority	School / Scope	Item	Who
HIGH		KIPP Academy Bronx (C3600013) — NRtW decertification petition active as of May 2026. Monitor NLRB R2 ADS weekly. If election is ordered: alert Executive Sponsor immediately. Cases: 02-CB-356035 (Barrera ULP v. UFT); employer ULP charges (UFT v. KIPP); Barrera decert petition filed May 2024 / September 2024. Bad faith bargaining ruling confirmed June 2025.	
HIGH	KIPP Academy Bronx (C3600013)	NRtW Foundation decertification petition (Barrera) — ACTIVE as of May 2026. Monitor NLRB R2 ADS weekly for case resolution. If decertification election is ordered or held: alert Executive Sponsor immediately. Same playbook as CA (Gompers DECERTIFIED 2023, St. HOPE DECERTIFIED March 2026). Bad faith bargaining ruling June 2025 — employer found to have violated NLRA. UFT ULP blocking charges protecting election as of May 2026.	Research Coordinator
HIGH	Uncommon Preparatory Charter HS (NAPCS-ADD-NY-003)	First Uncommon Schools NYC certification (case 29-RC-341899, est. June 2024). Monitor for first contract ratification and union name resolution (FOIA to R29 pending). Also monitor Uncommon campuses in NJ, IL, MA for organizing spread — same operator.	Research Coordinator
MEDIUM	Amber Charter School — East Harlem (NAPCS-ADD-NY-002)	UFT Local 2 certified May 2022 (case 02-RC-290431, 7-0 vote). Pre-first-contract as of May 2026 (~2 years post-cert). Monitor for first contract ratification. East Harlem campus only — Bronx and other campuses remain unorganized.	Research Coordinator
MEDIUM	Bronx Academy of Promise (C3608004)	CONFIRMED (upgraded May 2026). RC case number and cert date pending NLRB FOIA. Active decertification petition (29-RD-375448, filed Nov 2025) is BLOCKED by NLRB GC blocking order (Dec 4, 2025) pending ULP resolution. Monitor monthly — blocking order can be lifted when ULP resolves.	Research Coordinator